

TENTATIVE RULING FOR May 26, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2536316

NATALIE GIBBS v. FALCON FAMRS, INC., et al.

TENTATIVE RULING:

This litigation concerns an uninhabitable rental. On December 12, 2025, Plaintiff Natalie Gibbs filed her Complaint against Defendants Falcon Farms, Inc. and Chandresh Ravaliya. The Complaint pleads 10 causes of action: (1) breach of contract, (2) breach of warranty of habitability, (3) breach of quiet enjoyment, (4) negligence, (5) private nuisance, (6) intentional infliction of emotional distress (IIED), (7) violation of Penal Code section 496, subdivision (c), (8) retaliatory eviction, (9) violation of Civil Code section 1950.5, and (10) collection of rent on substandard dwelling. Defendant Falcon answered.

The Complaint alleges that on January 17, 2022, Plaintiff Gibbs entered into a 2-year written lease for 9190 Redlands Blvd., Redlands (Subject Property) with the former owner/ manager of the property. Upon moving in, Gibbs noted that the Subject Property had roof leaks, deteriorated and unsafe entry steps, problems with the entrance door, and holes in the floor. She reported the conditions to the former owner/property manager who indicated the issues would be addressed by the new owner, Falcon and/or Ravaliya. Upon the transfer of ownership, Falcon and Ravaliya were informed of the Subject Property condition, but nothing was done. Soon thereafter, Gibbs began experiencing worsening water intrusion and moisture problems. Although reported, no investigation or repairs were undertaken. In early 2024, Gibbs had mold testing performed, which discovered harmful mold within the Subject Property. She reported the mold. In response, Falcon and Ravaliya terminated her tenancy (§§1-3, 9-21).

Per the January 22, 2026, filed Proof of Service of Summons (POS-Summons), Defendant Ravaliya was personally served through her agent for service on January 14, 2026, at 2:58 p.m. Defendant Ravaliya moves to have that service quashed. Plaintiff Gibbs opposes in part. Defendant Ravaliya replies.

The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court (Serpa)* (1984) 153 Cal.App.3d 555, 557 [“*MJS Enterprises*”].) Without substantial compliance with the statutory requirements for service of summons, personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *MJS Enterprises, supra*, 153 Cal.App.3d at p. 557.)

A defendant, on or before the last day to plead, may serve and file a notice of motion to quash service of summons on the grounds that the court lacks jurisdiction. (Code Civ. Proc., §418.10, subd. (a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Service of Summons can occur essentially in four manners: (1) personal service (Code Civ. Proc., §415.10); (2) substituted service (Code Civ. Proc., §415.20); (3) by mail with copies of notices of acknowledgment (Code Civ. Proc., §415.30); and (4) by publication if the person cannot be served otherwise (Code Civ. Proc., §415.50).

Judicial Notice

Defendant Ravaliya requests judicial notice of the POS-Summons filed January 22, 2026 (Exh. A). The request is granted per Evidence Code section 452, subdivision (d).

Analysis

Per the POS-Summons, Ravaliya was personally served with the Summons and Complaint by service on Amrdeep Sanhu, as agent for service of process, on January 14, 2026, at 2:58 p.m. (RJN, Exh. A.) Plaintiff indicates when service completed on Falcon, the agent indicated he could accept service on Ravaliya’s behalf. (Gelzayd Decl. at ¶2.)

Personal service is completed when the named person is personally handed the Summons and Complaint. (Code Civ. Proc., §415.10). Ravaliya was never personally served with the Summons and Complaint. (Ravaliya Decl. at ¶2.) One cannot personally serve an individual by serving a corporation’s agent for service.

Thus, the service on Ravaliya was defective. Plaintiff essentially concedes this because her Counsel attests that subsequent substituted service was completed on Ravaliya on April 29, 2026, through service on his wife after prior attempts were unsuccessful. (Gelzayd Decl. at ¶¶7-8, 10, Exh. A.)

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The court grants Defendant’s Motion to Quash the purported service of the Summons and Complaint on January 14, 2026.